

23VECV04632 23VECV04632

County: los-angeles

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANBESSAW CONSULTING, INC., a California corporation,

Plaintiff,

vs.

EL SERENO MANOR, INC., a California corporation, and DOES 1 through 100, inclusive,

Defendant.

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CASE NO.: 23VECV04632

ORDER GRANTING DEFENDANT EL SERENO MANOR, INC.'S MOTIONS TO COMPEL FUTHER RESPONSES TO REQUESTS FOR PRODUCTION (SET THREE) AND FORM INTERROGATORIES (SET TWO)

EL SERENO MANOR, INC., a California corporation, and SAN FERNANDO SUBACUTE REHABILITATION CENTER, LLC
d.b.a. GOLDEN LEGACY CARE CENTER,

Cross-Complainants,

vs.

ANBESSAW CONSULTING, INC., a California corporation, d.b.a. THE QUALITY FIRM, and ROES 1 through 20, inclusive,

Cross-Defendants.

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I. BACKGROUND

Anbessaw Consulting, Inc. ("Anbessaw") brings this breach of contract action against El Sereno Manor, Inc. ("El Sereno"). Anbessaw alleges El Sereno failed to pay it \$96,207.67 for services rendered under their agreement.

El Sereno moves to compel Ambessaw's further responses to its Form Interrogatories-General (Set Two) ("Motion FROGs") and Requests for Production of Documents (Set Three) ("Motion RFPs").

II. PROCEDURAL HISTORY

On October 17, 2023, Anbessaw filed a Complaint alleging (1) Breach of Written Contract; (2) Violation of Prompt Payment Statutes; (3) Breach of Implied Covenant of Good Faith and Fair Dealing; (4) Indebitatus Assumpsit; (5) Account Stated; (6) Open Book Account; (7) Quantum Meruit; (8) Foreclosure of Mechanics Lien; and (9) Declaratory Relief.

On April 2, 2024, El Sereno filed an Answer and Cross-Complaint.

On April 24, 2024, Anbessaw filed an Answer.

On June 6, 2024, Anbessaw filed a First Amended Complaint asserting the same causes of action.[1]

On September 18, 2025, El Sereno designated Roe 1 as The Quality Firm, a California corporation.

On September 30, 2025, The Quality Firm filed an Answer.

On September 20, 2026, El Sereno designated Roe 2 as Grace Inspection and Testing Inc., a California corporation.

On June 22, 2026, Grace Inspection and Testing Inc. filed an Answer.

On August 14, 2026, Anbessaw filed the instant Motions.[2]

On September 1, 2026, El Sereno filed its Oppositions.

On September 8, 2026, Anbessaw filed its Replies.

III. LEGAL STANDARD

A. Request for Production of Documents

In responding to a request for production of documents, a party must provide one of the following: (1) a legally adequate statement of compliance; (2) a statement of inability to comply; or (3) an objection to the particular demand. (See Code Civ. Proc. § 2031.210(a).)[3] If any objections are made, they must: (1) “[i]dentify with particularity any document ... falling within any category of item in the demand to which an objection is being made”; and (2) “[s]et forth clearly the extent of, and the specific ground for, the objection.”⁴ (Id. at § 2031.240(b).) A statement that the responding party is unable to comply with a particular demand “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand”; “shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party”;⁵ and “shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Id. at § 2031.230.)⁶

A party who believes a responding party has served (1) an incomplete statement of compliance, (2) an inadequate, incomplete, or evasive statement of compliance, or (3) an unmeritorious objection can move for an order compelling further responses but must “set forth specific acts showing good cause justifying the discovery sought by the demand.” (See id. at §§ 2031.310(a)-(b)(1).)

B. Interrogatories

A propounding party may move for an order compelling further responses to interrogatories if the responding party produced an evasive or incomplete answer or a meritless or overly general objection in response to an interrogatory. (See Code Civ. Proc. § 2030.300(a).) A motion to compel further responses to interrogatories lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (See *id.* at § 2030.300.) The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid. (See Cal. Rules of Court, rule 3.1345(c).)

However, where a timely motion to has been filed, “the burden is on the responding party to justify any objection or failure to fully answer the interrogatories.” (Weil & Brown, Cal. Prac. Guide: Civil Pro. Before Trial (The Rutter Group 2017) ¶ 8:1179.) “The ruling usually is based on consideration of the following factors: [¶] the relationship of the information sought to the issues framed in the pleadings; [¶] the likelihood that disclosure will be of practical benefit to the party seeking discovery; [¶] the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Columbia Broadcasting System, Inc. v. Superior Court (Rolfe) (1968) 263 Cal.App.2d 12, 19.)

IV. MEET AND CONFER

Before bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2), 2030.300(b), & 2033.290(b).) Failure to make such attempt constitutes “misuse of discovery process”. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

“A reasonable and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether a meet and confer was reasonable and in good faith, “[a]n evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-94.)

El Sereno’s counsel, Andrew C. Jhun, attests he emailed Anbessaw’s counsel a meet and confer letter and twice requested availability for a telephonic meet and confer. (See Declaration of Andrew C. Jhun filed August 14, 2026 (“Jhun Decl.”), ¶¶ 14-15.) Jhun attests Anbessaw’s counsel did not respond. (See *id.*)

The Court will consider the merits of the Motion despite both counsel’s failure to comply with their meet and confer obligations. Future failures by either counsel could be met with sanctions or denial of the relief sought without addressing the merits.

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V. ANALYSIS

A. El Sereno’s Motion FROGs is Granted.

El Sereno argues further response to Nos. 1.1 and 17.1 are warranted because Anbessaw served objection only responses, however because Anbessaw served untimely responses, it waived all objections. (See *id.*) El Sereno contends Anbessaw's responses were due July 3, 2026, at noon and it untimely served its responses at 6:21 p.m. on that date. (See *id.*) El Sereno also argues the objections are inapplicable.

Anbessaw argues the noon deadline El Sereno imposed when confirming the deadline date was not discussed when the parties were deciding the deadline nor did Anbessaw accept it. (See *Opp.* at 2:6-10.) Moreover, Anbessaw argues §2030.270(a) only requires that parties agree to an extension date, not an hour. (See *id.*, at 4:24-27.) Anbessaw also argues the Motion is moot because by the time of the hearing it will have served further responses. (See *id.*, at 2:3-5.) In the alternative, Anbessaw requests relief from any waiver under section 2031.300(a). (See *id.*, at 2:11-12.)

El Sereno argues it has not received further responses. (See *Reply* at 3:5.) El Sereno argues the Court need not reach whether the parties agreed to a noon deadline as the objections are meritless. (See *id.*, at 3:24-25.) Moreover, El Sereno argues Anbessaw never objected to the noon deadline. (See *id.*, at 4:18.)

The Court finds Anbessaw's responses were timely. Per Anbessaw's counsel's June 26, 2026, email, there was no noon deadline memorialized as part of the extended deadline. (See *Jhun Decl.*, ¶ 9, Ex. 2.) Only three days before the deadline did El Sereno add the noon deadline, which was never agreed upon by opposing counsel. (See *id.*) Since Anbessaw served responses by the deadline date, they are timely.

The Court finds further response to Nos. 1.1 and 17.1 are warranted. The objections are unsubstantiated and thus overruled. The Court GRANTS El Sereno's Motion FROGS.

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B. El Sereno's Motion RFPs is Granted.

El Sereno compels further responses to Nos. 48-56 for the same reasons set forth above. (See e.g. *Sep. Stmt. No. 48.*) El Sereno argues the objection only responses are insufficient where objections were waived and are further inapplicable or unsubstantiated. (See *id.*)

Anbessaw asserts the same arguments in opposition as set forth above. El Sereno asserts the same arguments in reply as set forth above.

The Court finds further response to Nos. 48-56 are warranted. After reviewing the boilerplate objections to each request (attorney-client, burdensome, overbroad, irrelevant, legal conclusion), the Court finds they are unsubstantiated and thus overrules them. The Court GRANTS El Sereno's Motion RFPs.

VI. DISCOVERY SANCTIONS

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, interrogatories, or requests for admission, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See *Code Civ. Proc.* §§ 2031.310(h), 2030.300(d), 2033.290(c).)

El Sereno requests discovery sanctions in the amount of \$3,960.00 in connection with its Motion RFPs and \$3,360.00 in connection with its Motion FROGs. Counsel attests he spent 5.5 hours preparing the Motion RFPs and will spend 1 hour preparing the reply and attending the hearing. (See RFPs. Jhun Decl., ¶ 21-22.) Counsel attests he spent 4.5 hours preparing the Motion FROGs and will spend 1 hour preparing the reply and attending the hearing. (See FROGs. Jhun Decl., ¶ 19-20.) Counsel's hourly rate is \$600.00. (See id.) Counsel also incurred the cost for two \$60.00 filing fees.

The Court awards El Sereno's counsel \$2,820.00. The Court finds 1.5 hours to prepare each motion, 1 hour to prepare the substantially similar replies, and 0.5 hours to remotely attend the hearing at the requested hourly rate is reasonable. The Court also awards the filing fee amounts.

Accordingly, Anbessaw's counsel is ordered to pay El Sereno's counsel \$2,820.00 on or before October 16, 2026.

VII. CONCLUSION

Based on the foregoing, the Court GRANTS El Sereno's Motion FROGs and RFPs. Anbessaw is ordered to provide further code complaint responses without objection on or before September 30, 2026.

Anbessaw's counsel is ordered to pay El Sereno's counsel \$2,820.00 on or before October 16, 2026.

IT IS SO ORDERED.

DATED: September 15, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] The parties apparently submitted a Stipulation to deem the First Amended Complaint lodged on June 6, 2024, accepted and filed and that the Answer to the Complaint would serve as the Answer to the First Amended Complaint and deemed filed. For some reason, the Stipulation appears on the docket as "Amended Complaint" rather than Stipulation and Order to File First Amended Complaint so it was never brought to the Court's attention. The Court signed the Proposed Order on September 14, 2026.

[2] Anbessaw filed two copies of its Motion FROGs, the Court will consider the later filed motion only.

[3] All statutory references are to California codes unless stated otherwise.